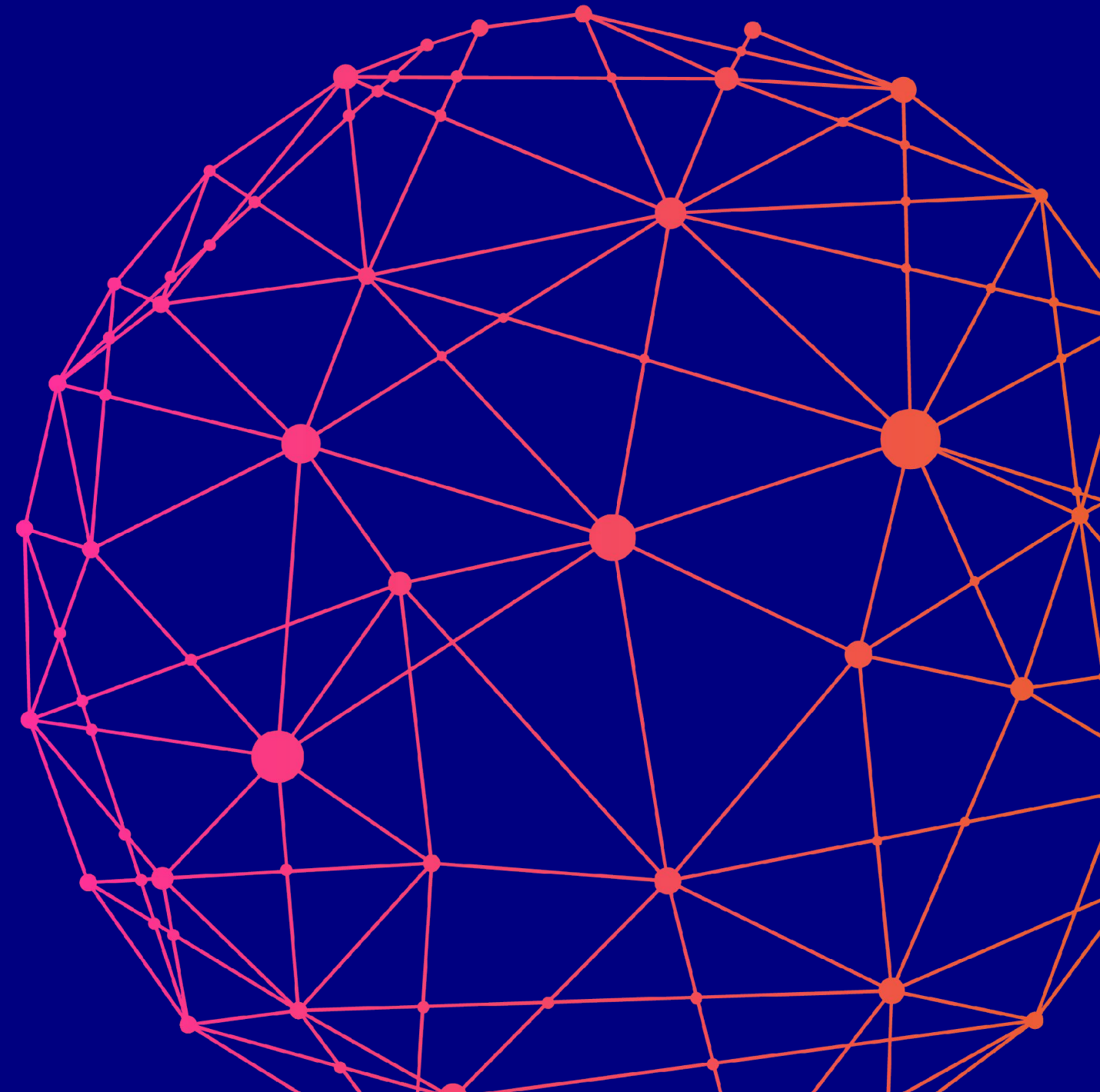


Data Spaces Symposium

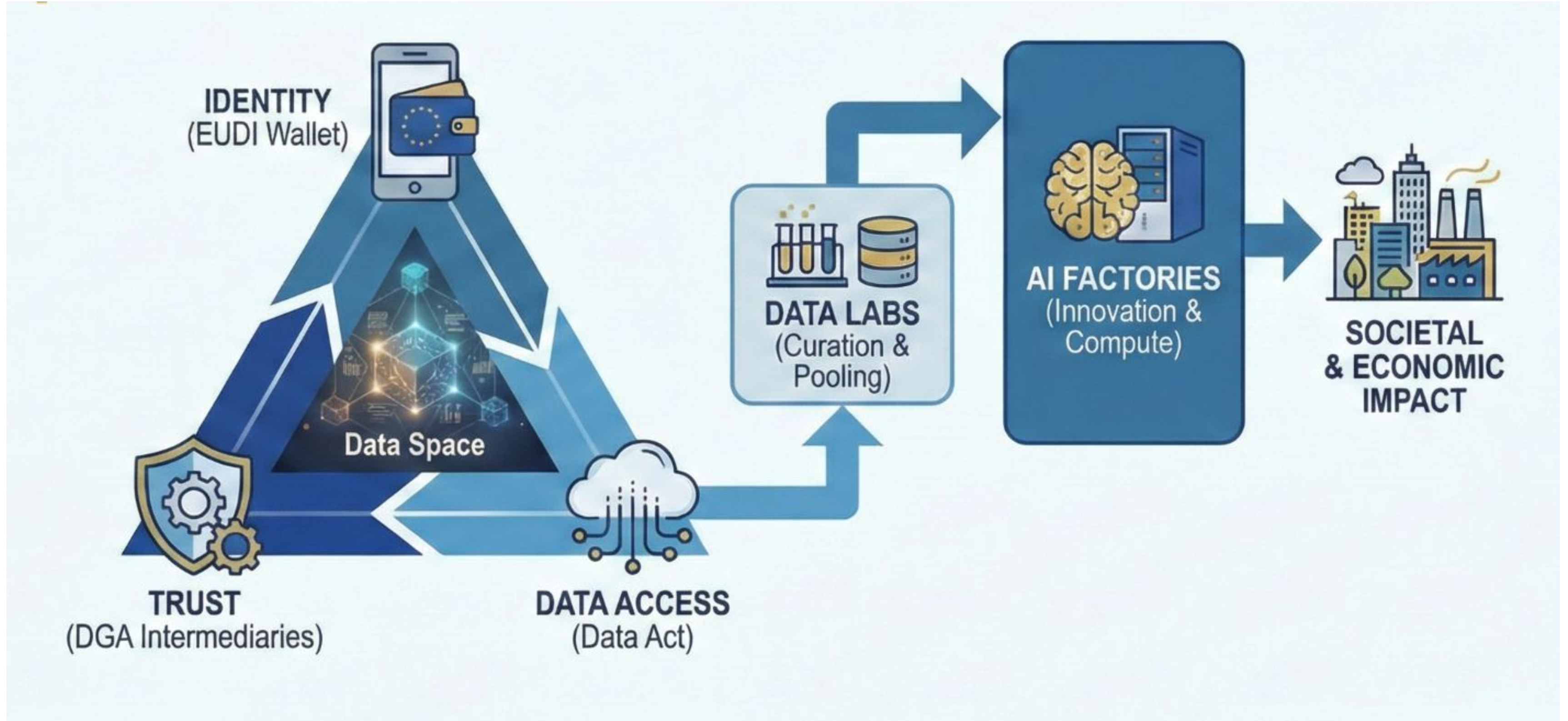
Accelerating adoption. Increasing impact.

eIDAS2,
Data Intermediaries in the DGA and
data access and portability rights
(introduced in the Data Act)

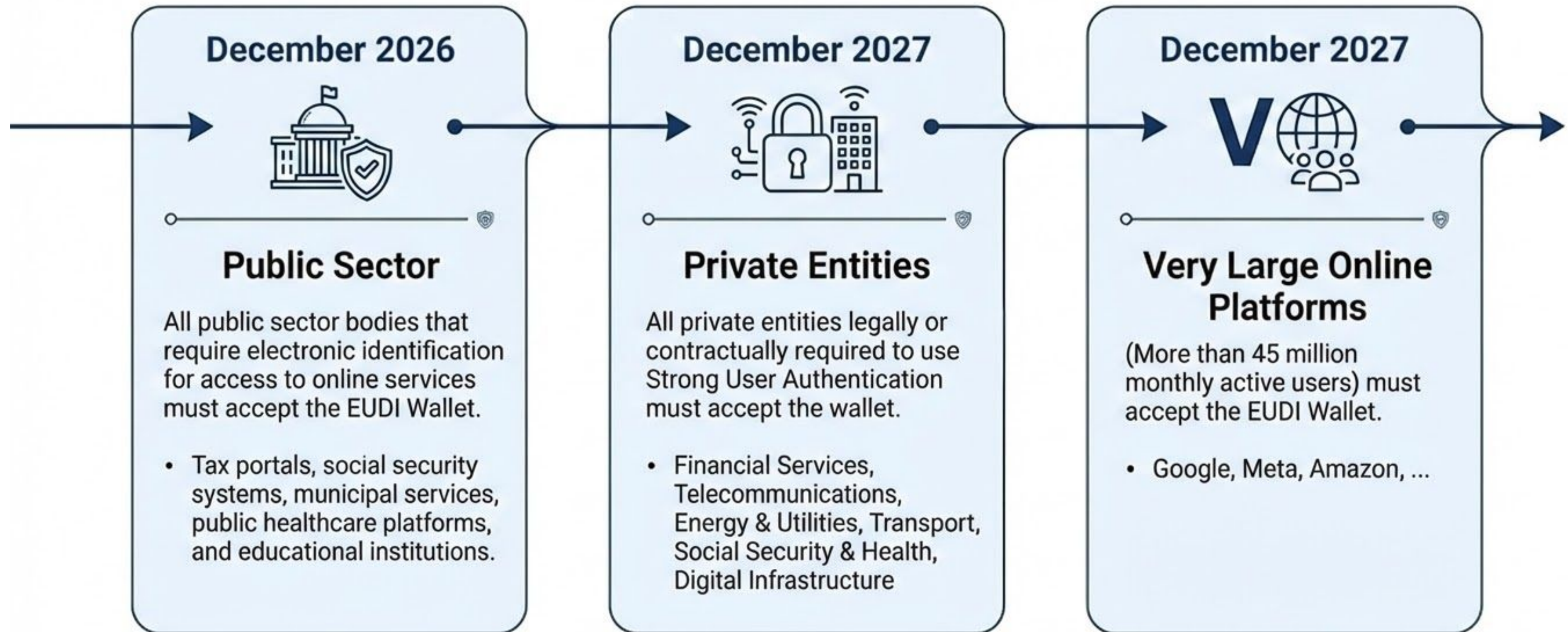
Jesus Ruiz



From Data to AI Value with Positive Impact



eIDAS2 obligations are coming fast



QEEAs: the “remote control” for Data Sovereignty

Much more than a single identity across borders and ecosystems.

The EUDI Wallet/Business Wallet with Qualified Attestations of Attributes (QEAA) to express mandates and consent acts as the “remote control” of data sovereignty.



Obligatory Acceptance Across the EU

A “data sharing order” issued by a user in Portugal must be legally recognized by a Data Holder in Germany.



Presumption of Validity (Legal Assurance)

Enjoy a legal presumption of the integrity of the data and the correctness of the origin.

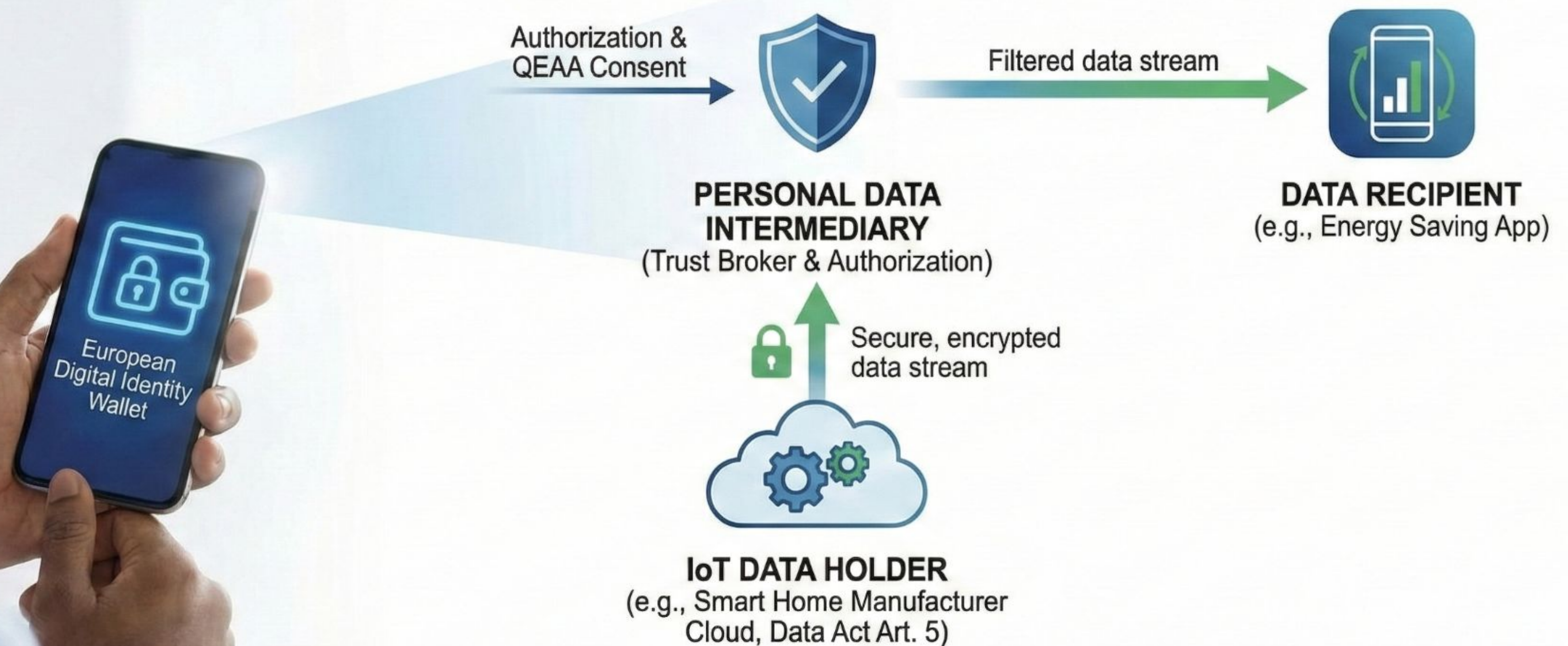
Reverse Burden of Proof: If a dispute arises, the signature is presumed valid.



Increased legal Assurance for the Data Intermediary, Holder and User

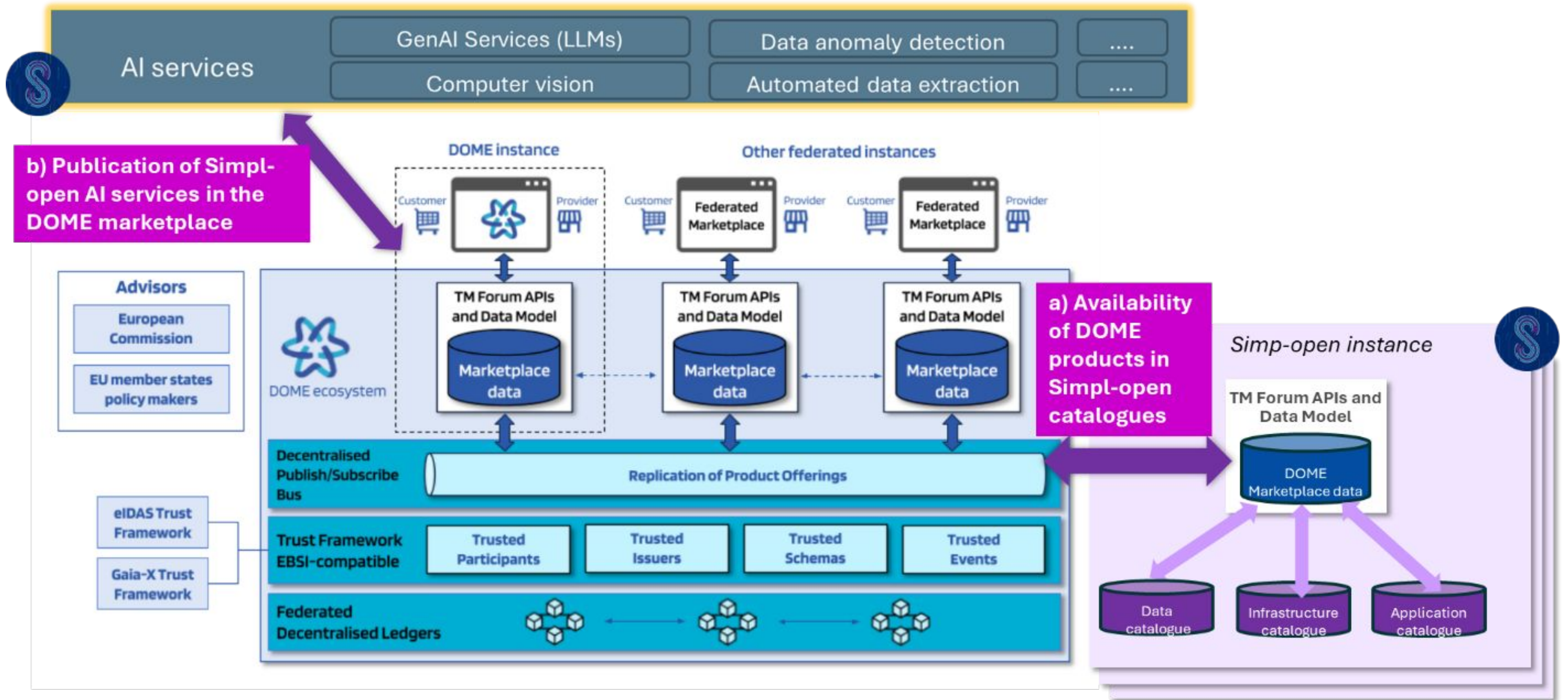
Liability Shift: If the data being shared is incorrect, the Intermediary is not liable for the identity of the user. The liability rests with the QTSP that issued the QEAA.

EUDI Wallet: “remote control” of personal data

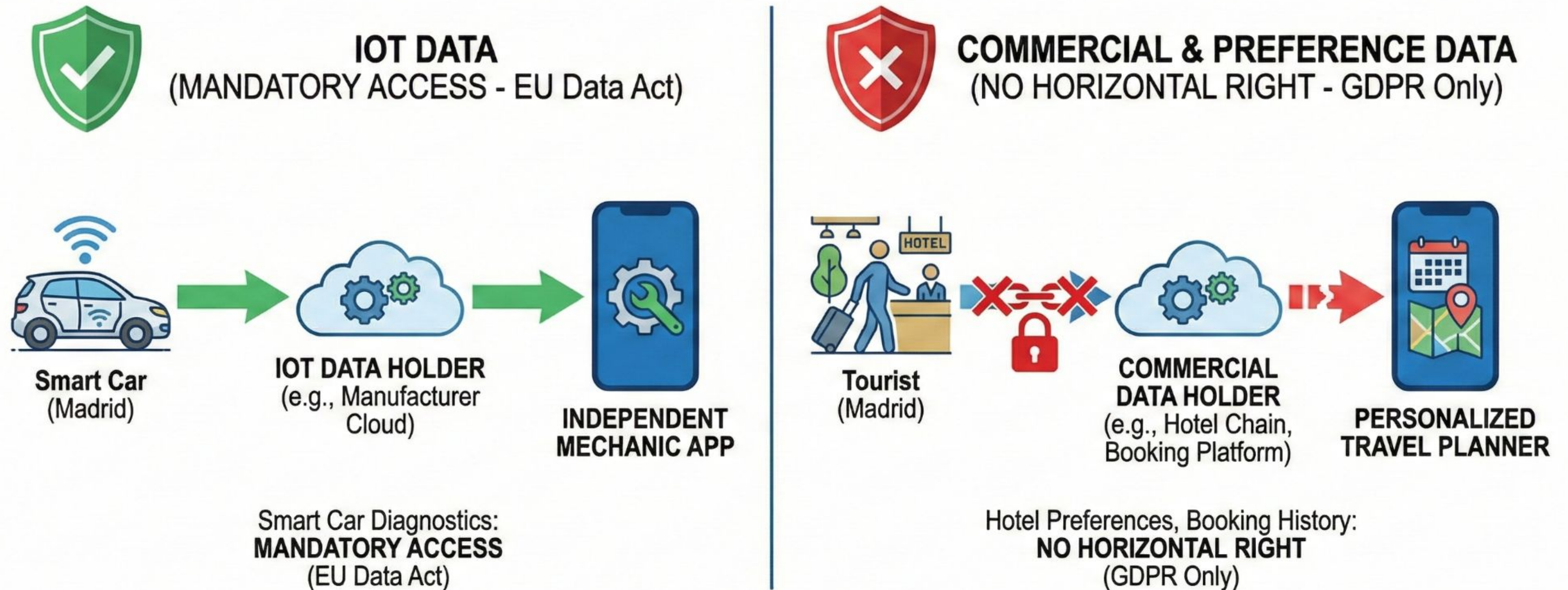


The Wallet authenticates the user and authorizes the Intermediary to access and port IoT data securely to a third party, without the intermediary storing the data.

DOME: the European Cloud Marketplace



The Sectoral Problem: e.g., Tourism



Data Act provides mandatory access for IoT data, but sectors like Tourism require specific regulation for data portability, similar to Financial or Health data spaces, to unlock innovation.

My recommendations

Regulation:

- Formally designate all **Data Intermediation Service Providers** (DISPs) as "**Relying Parties**" under eIDAS2
- **QEAs as the Standard for "Non-Repudiation"**: Mandate Qualified Electronic Attribute Attestations as the mechanism for data access requests and consent
- Evolve the **Data Act into a Horizontal Baseline for all structured customer data**: extend rights of data access and portability to other important sectors

DSSC:

- Create urgently a workstream to define legal and technical details to **help integrate the EU Digital Identity**, especially for SMEs
- Strongly recommend it, do not leave it as "just another option for the implementers"
- We need a single digital identity in the EU, and Data Spaces are an important part of the digital ecosystem

